



No:
700-04

DAS Policy

Effective:
October 15, 2024

Data Governance

Appointing Authority Approval:

Kathleen C. Madden, Director

I. Purpose

The purpose of this policy is to outline requirements for the establishment, maintenance, and use of a formal Ohio Department of Administrative Services (DAS) **Data Governance** framework that ensures appropriate decision-making and accountability in the data lifecycle, including creation or collection, processing, dissemination, use, storage, disposition, destruction, and deletion of DAS **Data** and **Data Analytics**. The first occurrence of a defined term in the policy is in bold, italic type, and is hyperlinked to the definition in Section IV.

II. Scope

This policy applies to all DAS programs, employees, and contracted individuals and to all Data that is created or maintained by DAS under its authority for its purposes.

This policy is not intended to address public records requests, which are defined in Ohio Revised Code (ORC) Section 149.43 ("Ohio Public Records Law").

III. Policy

It is the policy of DAS that all Data and **Data Products** shall be protected, managed, and used appropriately pursuant to law, policy, and procedures to promote the efficient and effective operation of state government in accordance with State of Ohio Policy IT-19, Data Governance. At a minimum, DAS shall include and account for the following:

A. **DAS Data Governance Roles and Responsibilities**

1. **Organizational Users** must responsibly use **State Data** that resides within state-owned, managed, or governed **Information Technology (IT) Resources** and includes:
 - a) **Personally Identifiable Information (PII)** and **Confidential Personal Information (CPI)**,
 - b) **Sensitive Data**, and
 - c) Data input into or generated by **Artificial Intelligence (AI)**.
2. The Data Owner must ensure that all Data and Data Products within their **Data Domain** are classified, protected, and managed appropriately pursuant to law, policy, and procedures. The Data Owner is also responsible for authorizing access and/or sharing of agency Data through the creation of Data use or sharing agreements, in consultation with their designated legal and privacy representatives. The Data Owner must serve as the primary point of contact for regulatory audits and must work in collaboration with Data Stewards and Data Custodians to provide responses.
3. The Data Steward must provide day-to-day management of a dataset and serve as the subject matter expert who understands and communicates the meaning and use of Data.
4. The Data Custodian must provide safe custody, transport, and storage of State Data, as well as be responsible for the implementation of any applicable federal, state, or DAS Data protection requirements defined by the Data Owner.
5. The DAS Data Governance Committee (DGC) shall:
 - a) Be composed of the following member or advisory roles, or appropriate designees:
 - (i) DAS Director
 - (ii) DAS Chief Information Officer
 - (iii) Agency Information Security Officer
 - (iv) DAS Chief Legal Counsel
 - (v) State Chief Privacy Officer
 - (vi) DAS Agency Chief Data Officer
 - b) Establish, maintain, review, enhance, and ensure adherence to the DAS Data Governance framework.
 - c) Meet on a regular schedule to assess and evaluate the impact of Data decisions on Data management, DAS process management, compliance management, and people management.
 - d) If the DAS DGC determines a matter has broad strategic implications and is best resolved with feedback from DAS executive leadership or the Chief Data Officer Council, the DAS DGC will refer the matter to the DAS executive leadership team before making a final determination.
 - e) As needed, invite ad hoc Data Owners, Stewards, or Custodians from across DAS to represent specific Data requests or issues under consideration.

- B. **Data Use, Access, or Sharing:** All proposed DAS Data use, access, or sharing must be reviewed for ***Confidentiality*** implications. Any internal or external initiated requests or proposals to use, access, or share DAS Data that contains Sensitive Data, or when combined with other datasets could result in the identification of Sensitive Data, shall provide a justification for use, access, or sharing. All Data decisions must comply with federal and state statutes and policies.
1. Individuals in DAS Data Governance roles must follow procedures, as defined by the DAS Chief Data Officer and DAS Data Governance Committee, that address:
 - a) Handling non-routine Data requests involving PII, CPI, or Sensitive Data.
 - b) Handling routine Data requests that do not involve PII, CPI, or Sensitive Data.
 2. DAS Data that is approved for publication to the ***DataOhio Portal*** or a DAS website shall:
 - a) Be vetted for ***Data Quality*** and accuracy prior to publication;
 - b) Comply with publishing standards and approval protocols established by InnovateOhio and/or DAS;
 - c) Adhere to state and DAS policies; and,
 - d) Ensure Data remains current based on a defined refresh schedule.
- C. **Data Analytics Projects that Involve PII/CPI/Sensitive Data:** DAS shall comply with the requirements outlined below unless otherwise authorized by the Governor's Office or for purposes specified in state or federal laws, regulations, guidelines, or grant provisions.
1. The DAS Data Governance Committee and, when necessary, an ***Institutional Review Board***, shall review all proposed Data Analytics projects that involve the use of PII/CPI/Sensitive Data.
 2. The ***InnovateOhio Platform (IOP)*** must be used for any DAS-approved projects in accordance with Ohio Administrative Policy IT-19, Data Governance.
 3. DAS-approved Data Analytics projects that involve ***Generative AI*** shall be referred to the AI Council for final review, as outlined in State of Ohio Policy IT-17, Use of Artificial Intelligence in State of Ohio Solutions.
 4. DAS divisions and offices must share Data with IOP in accordance with Executive Order 2019-15D and ORC 125.32.
- D. **Data Classification and Labeling**
1. DAS shall classify and label Data in accordance with State of Ohio Policy IT-13, Data Classification, to identify what Data needs to be protected against unauthorized access and misuse, and to determine the extent to which it needs to be secured and controlled.

These classifications shall be regularly reviewed to determine if any adjustments are needed.

2. DAS may leverage **Data Catalog** tools to label **Data Assets**, including business, operational, and technical metadata, and assign roles to agency Data Assets.
- E. **Data Quality:** As part of system development lifecycle and program integrity, DAS shall work to promote Data Quality, including the improvement of existing Data and Data generated as the result of the design phase for new IT or Data collection systems.
- F. **Data Integrity:** DAS shall work to promote Data **Integrity**, including the Integrity of existing Data and newly collected Data.
- G. **Education and Awareness:** DAS shall provide Data Governance education and awareness training to individuals within DAS who are assigned to the roles and responsibilities defined in Section III.A. of this policy. DAS shall address the following topics as part of its training efforts:
1. The DAS Data Governance framework and associated policies, standards, and procedures.
 2. The process for identifying and assigning **Data Classification Labels** and guidelines for State Data.
 3. Data sharing agreement requirements and processes, including Data distribution and disclosure guidelines.
- H. **Compliance:** DAS shall align with the requirements of this policy by July 1, 2025, as required by State of Ohio Policy IT-19, Data Governance.

IV. Definitions

- A. Artificial Intelligence (AI). Interdisciplinary field, usually regarded as a branch of computer science, dealing with models and systems for the performance of functions generally associated with human intelligence, such as reasoning and learning.¹
- B. Confidentiality. Preserving authorized restrictions on information access and disclosure, including a means for protecting personal privacy and proprietary Information.²

¹ Reznik, Leon, NIST Trustworthy & Responsible AI Resource Center Glossary <https://airc.nist.gov/AI_RMF_Knowledge_Base/Glossary>.

² "NIST Special Publication 800-53 Revision 5, Security and Privacy Controls for Information Systems and Organizations," U.S. Department of Commerce National Institute of Standards and Technology, September, 2020 <<https://nvlpubs.nist.gov/nistpubs/SpecialPublications/NIST.SP.800-53r5.pdf>>.

- C. Confidential Personal Information (CPI). Personal Information defined by ORC 1347.01 that agencies are prohibited from releasing under Ohio's Public Records Law and that is retrieved from a system within the scope of ORC 1347.15.
- D. Criticality. A measure of the degree to which an organization depends on the information or information system for the success of a mission or of a business function. For purposes of this policy, the elements of Criticality are the organization's need for Integrity and Availability of the information or information systems.
- E. Data. Coded representation of quantities, objects, and actions (Note: This includes Data processed into a form that has meaning and value to the recipient to support an action or decision).
- F. Data Analytics. The management of Data for all uses (operational and analytical) and the analysis of Data to drive business processes and improve business outcomes through more effective decision-making and enhanced customer experiences.³
- G. Data Asset. A piece of information, deemed as valuable, that is collected and stored by an organization (i.e., databases, dashboards, documents, spreadsheets, images, videos, voice, etc.). Organizations may use Data Assets to inform their strategy, make business decisions, or derive insights.
- H. Data Catalog. A detailed inventory of an organization's Data Assets that uses standardized descriptions and metadata to help users easily find and understand available Data Assets. Maintaining a catalog helps to ensure that business and information technology users can identify and apply the correct Data Assets.
- I. Data Classification Label. Denotes the level of protection required based on the Confidentiality and **Criticality** of Data in accordance with the agency's risk assessment. Data Classification Labels enable policy-based standards for securing and handling Data and sharing information among organizations.⁴
- J. Data Domain. A logical grouping of Data, over which someone has control, influence, or rights over. Data Domains are designated, named, and assigned accountability.
- K. Data Governance. The exercise of authority and control over the management of Data Assets. This includes planning, monitoring, enforcement, strategy alignment, defining objectives, establishing policies, stewardship, cataloging, and labeling agency or enterprise information. Data Governance matches stakeholder needs with the appropriate Data Owner(s) within the agency to provide the right information.

³ "Data and Analytics." Def. The Gartner Glossary of Information Technology Acronyms and Terms. 2024 Gartner, Inc. and/or its Affiliates. <<https://www.gartner.com/en/information-technology/glossary/data-and-analytics>>.

⁴ Stine, Kevin, Rich Kissel, William C. Barker, Jim Fahlsing, Jessica Gulick. "NIST Special Publication 800-60 Revision 1, Volume I: Guide for Mapping Types of Information and Information Systems to Security Categories," U.S. Department of Commerce National Institute of Standards and Technology, August, 2008 <https://csrc.nist.gov/publications/nistpubs/800-60-rev1/SP800-60_Vol1-Rev1.pdf>.

- L. **Data Product.** A solution that is built for a specific need, leverages valuable datasets, is easily accessible and searchable, is secured in accordance with the nature of the Data, and provides insights to assist in decision-making. Datasets and visualizations within the DataOhio Portal are examples of Data Products.
- M. **DataOhio Portal or Portal.** Resulting from Executive Order 2019-15D, the DataOhio Portal displays public datasets and facilitates the request, approval, and delivery of secured datasets, providing public access to information with transparency and ease. The Portal improves Ohioan and customer interactions with agencies.
- N. **Data Quality.** Data that is reliable, trustworthy, and supports the organization.
- O. **Generative AI.** A kind of AI capable of generating new content such as code, images, music, text, simulations, 3D objects, videos, and so on. It is considered an important part of AI research and development, as it has the potential to revolutionize many industries, including entertainment, art, and design.⁵
- P. **Information Technology Resources.** Any information technology resource, such as computer hardware and software, IT services, telecommunications equipment and services, digital devices such as digital copiers and facsimile machines, supplies, and the Internet, made available to employees, contractors, temporary personnel and other agents of the state in the course of conducting state government business in support of agency missions and goals.
- Q. **InnovateOhio Platform (IOP).** Established by Executive Order 2019-15D, the InnovateOhio Platform (IOP) provides integrated and scalable capabilities that enable state agencies to become more customer-centric and Data-driven, delivering on InnovateOhio's vision to better serve Ohioans.
- R. **Institutional Review Board.** An administrative body established to protect the rights, privacy, and welfare of human subjects recruited to participate in research activities conducted under the auspices of the institution with which it is affiliated. The Institutional Review Board is charged with reviewing, prior to its initiation, all research (whether funded or not) involving human participants.
- S. **Integrity.** Guarding against improper information modification or destruction, and includes ensuring Information non-repudiation and authenticity.
- T. **Organizational User.** Anyone who is an employee of the state or is otherwise authorized to work on behalf of the state and who has a need to access State of Ohio IT systems and has secured agency authorization for such access. The organizational identifier will help to distinguish the individual during the authentication process. Examples of resources that may fall into this category include full-time employees, part-time employees, seasonal employees, temporary contract workers, independent contractors or consultants, volunteers, or unpaid

⁵ Arham, Islam, NIST Trustworthy & Responsible AI Resource Center Glossary
<https://airc.nist.gov/AI_RMF_Knowledge_Base/Glossary>.

interns. The Organizational User identifier category may also include university and federal government resources.

- U. Personally Identifiable Information. Information that can be used directly or in combination with other information to identify a particular individual. It includes:
 - 1. a name, identifying number, symbol, or other identifier assigned to a person,
 - 2. any information that describes anything about a person,
 - 3. any information that indicates actions done by or to a person,
 - 4. any information that indicates that a person possesses certain personal characteristics.⁶
- V. Sensitive Data. Data that is classified as Confidentiality moderate, Confidentiality high, Criticality moderate, or Criticality high in accordance with State of Ohio Policy IT-13, Data Classification. There is a high degree of risk when unauthorized release or disclosure is contrary to a legally mandated Confidentiality requirement. There may be a moderate risk and potentially a high risk in cases of information for which an agency has discretion under the law to release Data, particularly when the release must be made only according to agency policy or procedure. The Data may be certain types of Personally Identifiable Information that is also sensitive such as medical Information, social security numbers, and financial account numbers. It includes Federal Tax Information under IRS Special Publication 1075, Protected Health Information under the Health Insurance Portability and Accountability Act, Criminal Justice Information under the Federal Bureau of Investigation's Criminal Justice Information Services (CJIS) Security Policy, and the Social Security Administration Limited Access Death Master File. The Data may also be other types of information not associated with a particular individual such as security and infrastructure records, trade secrets, and business bank account Information.
- W. State Data. All data and information provided by, created by, created for, or related to the activities of the State and any information from, to, or related to all persons that conduct business or personal activities with the State, including, but not limited to Sensitive Data. All State Data is and will remain the property of the State and, unless specifically provided otherwise in the Contract, Contractor acquires no right, title, or interest in or to State Data.

V. Authority

State of Ohio Policy IT-19, Data Governance

⁶ Based on ORC 1347.01 (E).

VI. Resources

Document Name	Location
Data Use Agreement Template - IOP Data Analytics Projects	https://ohid.ohio.gov/wps/myportal/gov/iop/data-analytics/data-use-agreement-template-data-analytics-projects
IOP Data Catalog Services	https://ohid.ohio.gov/wps/myportal/gov/iop/data-analytics/data-management/data-catalog
State of Ohio Policy IT-19, Data Governance	https://das.ohio.gov/technology-and-strategy/policies/IT-19
State of Ohio Policy IT-17, Use of Artificial Intelligence in State of Ohio Solutions	https://das.ohio.gov/technology-and-strategy/policies/it-17
State of Ohio Policy IT-14, Data Encryption and Securing Sensitive Data	https://das.ohio.gov/technology-and-strategy/policies/it-14
State of Ohio Policy IT-13, Data Classification	https://das.ohio.gov/technology-and-strategy/policies/it-13
State of Ohio Policy IT-08, Website Standardization	https://das.ohio.gov/technology-and-strategy/policies/it-08
DAS Policy 700-01, Information Technology Resource Usage	https://das.ohio.gov/technology-and-strategy/policies/700-01+information+technology+resource+usage
DAS Policy 100-11, Policy on Protecting Privacy	https://das.ohio.gov/technology-and-strategy/policies/100-11-protecting-privacy

VII. Inquiries

Direct inquiries about this policy to:

Office of the Chief Data Officer
Ohio Department of Administrative Services
30 East Broad Street, 39th Floor
Columbus, Ohio 43215

614-644-6860 | DataAnalytics@InnovateOhioPlatform.gov

State of Ohio Administrative Policies may be found online at
<https://das.ohio.gov/technology-and-strategy/policies>

VIII. Revision History

This policy shall be reviewed no less than every two years and updated as needed.

Date	Description of Change
10/15/2024	Original Policy.